

		Thus, whether the FAA applies or not, the question is whether there is a valid, enforceable arbitration agreement and whether grounds exist for its revocation under California law. To form a contract under California law, there must be mutual assent. (<i>Herzog v. Super. Ct.</i> (2024) 101 Cal.App.5th 1280, 1293-1294; <i>Long v. Provide Commerce, Inc.</i> (2016) 245 Cal.App.4th 855, 862.) “[M]utual manifestation of assent, whether by written or spoken word or by conduct, is the touchstone of contract.” (<i>Long</i>, at p. 862, internal quotes omitted.) Defendant produced the Cardholder Agreement for the credit card account ending in 0144, which includes an arbitration provision that covers claims related to the application for or issuance of the account, use of the credit card account and statements related to the account. (Hopkins-Donihe Decl., Ex. C at p. 5.) In the complaint, Plaintiff alleges she is the victim of identity theft and that she did not authorize or consent to the application for, or use of, the credit card ending in 0144, or otherwise agreed to the Cardholder Agreement. (Compl. ¶¶ 23-40.) The arbitration agreement covers the claims, but only if Defendant can meet its burden Plaintiff was not actually the victim of identity theft and was in fact, the person who applied for and used the credit card. Here, Defendant has not shown by a preponderance of the evidence that Plaintiff assented to the terms of the Cardholder Agreement, including the arbitration provision. Defendant’s timeline and description of events, including phone calls from Plaintiff’s phone number evidencing consent, is consistent with identity theft, including a person hacking into someone’s computer or phone and falsely pretending to be that person. The actions taken by Plaintiff are also consistent with a person whose identity has been stolen and trying to correct the issue. (Hopkins-Donihe Decl. ¶¶ 8-16, 19, Ex. F; Mott Decl. ¶¶ 2-19, Exs. A, B.) Defendant failed to meet its burden showing a valid and enforceable arbitration agreement between the parties. The motion is therefore DENIED. <i>Counsel for Plaintiff shall provide notice of this ruling.</i>
5.	Williams v. Southern California Edison 23-1300300	The motion to bifurcate and try issues of causation in advance of issues of damages filed by defendant Southern California Edison Company (Defendant) is DENIED. <i>Code of Civil Procedure section 598</i> provides that the court may order certain issues tried before others “when the convenience of witnesses, the ends of justice, or the economy and efficiency of handling the litigation would be promoted thereby[.]” (<i>Code Civ. Proc.</i>, § 598.) Similarly, <i>Code of Civil Procedure section 1048(b)</i> provides: “The court, in furtherance of convenience or to avoid prejudice, or when separate trials will be conducive to expedition and economy, may order a separate trial of any cause of action, including a cause of action asserted in a cross-complaint, or of any separate issue or of any number of causes of action or issues, preserving the right of trial by

		jury required by the Constitution or a statute of this state or of the United States." (<i>Code Civ. Proc.</i>, § 1048(b).) The Court has considered the arguments and evidence submitted by both parties and determines, at this time, bifurcation as requested by Defendant is not warranted. Accordingly, the motion is DENIED. <i>Counsel for Plaintiffs shall give notice of this ruling.</i>
6.	Auto Finance Solutions, LLC v. Prestige Kia Riverside 25-1500766	(Off calendar)
7.	Raygoza v. Kia America, Inc. 25-1466366	Before the Court is a motion to strike filed by defendant Kia America, Inc. (Defendant) directed to the First Amended Complaint (FAC) filed by plaintiff Esperanza L. Batres Raygoza (Plaintiff). For the reasons set forth below, the motion to strike is DENIED. Defendant moves to strike the prayer for punitive damages in the Complaint. A motion to strike is the proper vehicle to attack a claim for punitive damages. (<i>Code of Civ. Proc.</i> §§ 435-436; <i>Truman v. Turning Point of Central Calif., Inc.</i> (2010) 191 Cal.App.4th 53, 63.) A plaintiff may recover exemplary or punitive damages where it is proven that "the defendant has been guilty of oppression, fraud or malice." (<i>Civ. Code</i> § 3294(a).) A properly pleaded fraud claim will itself support recovery of punitive damages. (<i>Stevens v. Sup. Ct. (St. Francis Med. Ctr.)</i>(1986) 180 Cal.App.3d 605, 610.) An employer is not liable for punitive damages "based upon acts of an employee of the employer, unless the employer had advance knowledge of the unfitness of the employee and employed him or her with a conscious disregard of the rights or safety of others or authorized or ratified the wrongful conduct for which the damages are awarded or was personally guilty of oppression, fraud, or malice." (<i>Civ. Code</i> § 3294, <i>subd. (b)</i>.) With respect to a corporate employer, the advance knowledge and conscious disregard, authorization, ratification or act of oppression, fraud, or malice must be on the part of an officer, director, or managing agent of the corporation." (<i>Civ. Code</i>, § 3294, <i>subd. (b)</i>; see <i>Weeks v. Baker McKenzie</i> (1998) 63 Cal.App.4th 1128, 1150-1151; <i>College Hospital, Inc. v. Superior Court</i> (1994) 8 Cal.4th 704, 712- 713.) Here, Plaintiff cured the defect in the prior pleading and now alleges sufficient facts to support corporate liability for punitive damages, at least at the pleading stage. (FAC ¶ 46.) While Defendant argues the new allegations are conclusory, the FAC as a whole (including a viable claim for fraud) contains sufficient facts to apprise Defendant of the basis upon which Plaintiff is seeking relief. (<i>Perkins v. Superior Court</i> (1981) 117 Cal.App.3d 1, 6.) Furthermore, specific facts regarding corporate authorization and ratification lies within the knowledge of Defendant. The motion is therefore DENIED.